

24STCV23161 24STCV23161

County: los-angeles

Division: Civil Law and Motion

Department: 413

Hearing date: 2026-07-17

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Case Number: 24STCV23161 Hearing Date: July 17, 2026 Dept: 413

TENTATIVE RULING

Case Name: FINANCIAL SERVICES VEHICLE ... vs ALBA

ATANACIO ROSAS, et al.

Case Number: 24STCV23161

Hearing Date: July 17, 2026

Defendant(s) Against Whom Default Judgment is Sought: Alba Atanacio
Rosas

Ruling: Default Judgment is denied,
pending submission of corrections. Defendant STEVE GORDON, DIRECTOR OF THE
CALIFORNIA DEPARTMENT OF MOTOR VEHICLES, a California state agency as a nominal
Defendant, remains undismissed.

In addition, Plaintiff has not stated the military
status of defendant Alba Atanacio Rosas, whom Plaintiff described as "a third party not known to
Plaintiff as a stranger registered owner to the subject vehicle at issue, . . .
not Plaintiff's customer, and not a party to the vehicle's contract." As such, Plaintiff states that it does not
have access to Rosas' personal information, date of birth, or social security
number, which is information required to run a search through
<https://scra.dmdc.osd.mil/> for purposes of confirming that Defendant Rosas is
not in the US military service." Form Civ-100 states clearly states that "If
the defendant/respondent is in the military service, or their military status
is unknown, the defendant/respondent is entitled to certain rights and
protections under federal and state law before a default judgment can be

entered.” Plaintiff must either
determine and disclose Rosas’s military status or provide authority to the
Court that the Court may proceed to enter a default judgment against her
without that information.